Equality Impact Assessment
The Council · AI Governance Playbook (Level 5 document, §4.6.2)

An EIA assesses how an AI system may affect people sharing protected characteristics before it is approved for deployment.

Required for all High and Critical risk AI systems and recommended for Medium risk systems where outputs may affect people sharing protected characteristics. Completed by the Service Owner in consultation with the Equalities lead, who provides quality assurance and confirms the assessment before governance approval (Playbook §4.6.2). The assessment records due regard under section 149 of the Equality Act 2010, addressing the three Public Sector Equality Duty aims: eliminate discrimination, harassment and victimisation; advance equality of opportunity; and foster good relations. Any socio-economic analysis is recorded separately: socio-economic disadvantage is not a protected characteristic, and the analysis supplements rather than replaces the section 149 assessment. In England, the socio-economic duty in section 1 of the Equality Act 2010 is not in force, so the analysis is a voluntary local consideration; in Wales (section 1, in force from 31 March 2021) and in Scotland (the Fairer Scotland Duty) the socio-economic duty is statutory. Legal Services to confirm the position for the adopting council.

PROPOSED — legal review only; draft clarification, not an adopted or live Council policy change. For every AI use, regardless of AGPI tier, carry out and record case-level screening of whether the Council's functions and the proposed use may affect equality relating to protected characteristics; record the groups/characteristics considered, evidence, differential effects, uncertainty, and a reasoned conclusion on any further assessment. Where relevant, record how the decision-maker had due regard to all three section 149 aims. Section 149 is a statutory due-regard duty, not a statutory mandate for this template, a particular risk score, or a completed EIA in every case. The High/Critical full-template rule (and any additional internal threshold) is a separate proposed Council governance control; it neither defines nor discharges the statutory duty. Official text: https://www.legislation.gov.uk/ukpga/2010/15/section/149

1. System and Submission Details

System identity	System identity (name, owner, service area): held once in the AI Register (AIG-INV-04) under this AIR-ID; do not re-key here.
UC-ID / impact scope	Purpose/affected groups; AGPI priority ___; risk tier ___.
AIR-ID	AIR-XXXX
Equalities lead	
Date started	

Use-specific impact — identify the UC-ID, outcome, decision/action and affected groups. Assess impacts and mitigations per materially distinct use/population; evidence may be reused only with stated applicability. This assessment does not approve use.

2. Purpose and Affected Groups

What does the system do, and whose outcomes could it influence (residents, staff, specific service users)?

3. Impact by Protected Characteristic

For each characteristic, note any potential differential impact (positive, negative or neutral) and the evidence considered.

Protected characteristic	Potential differential impact & evidence
Age	
Disability	
Gender reassignment	
Marriage & civil partnership (relevant to s.149(1)(a) only; s.149(7))	
Pregnancy & maternity	
Race	
Religion or belief	
Sex	
Sexual orientation	
Socio-economic disadvantage and other compounding factors (not a protected characteristic; voluntary in England, statutory socio-economic duty in Wales and Scotland; Legal to confirm)	

4. AI-Specific Equality Analysis

Training data: is it representative? What representational biases were found and how were they checked?

Differential accuracy: how does performance vary across protected characteristic groups? Provide figures where available.

Could the system create or widen disadvantage, or fail to advance equality of opportunity?

5. Mitigation and Monitoring

Measures to remove or reduce any negative impact

Equality outcome monitoring: what will be measured after deployment, how often, and by whom?

6. Outcome and Equalities Sign-Off

Overall equality impact	No / Low / Medium / High negative impact
Decision	Proceed / Proceed with mitigations / Do not proceed
Section 149 PSED due-regard evidence	Record how the proposed decision addressed each of the three statutory aims and cite the evidence considered. For marriage and civil partnership, only the first aim (s.149(1)(a)) applies (s.149(7)).
Socio-economic analysis (voluntary in England; statutory in Wales and Scotland)	Record separately from protected-characteristic findings; explain any local mitigations or monitoring.

The Equalities lead confirms this assessment is satisfactory and that the Public Sector Equality Duty has been given due regard before governance approval is sought.

Equalities lead name	
Equalities lead signature	
Date	
Service Owner name	
Service Owner signature	
Date	

Document control
Administrative control record. This artefact remains a working draft until formally approved.

Field	Controlled value
Document ID	AIG-ASS-06
Version	1.6 draft
Status	Draft for Council review
Document owner	Equalities Lead

Field	Controlled value
Approving body	Pending — competent Council authority under confirmed Constitution / Scheme of Delegation; AI Assurance Board provides assurance and is not presumed to hold approval authority.
Approval date	Not yet approved
Effective date	Not yet effective
Next review date	To be set on approval: 12 months after the effective date, or sooner following material change
Classification	OFFICIAL

Change history

Version	Date	Change summary	Owner
1.0 draft	6 August 2026	Document-control baseline established following full-suite quality assurance; no substantive content change.	Equalities Lead
1.1 draft	6 August 2026	QA revision: clarified section 149 PSED analysis and separated voluntary socio-economic analysis.	Equalities Lead
1.2 draft	29 September 2026	QA remediation — applied findings QA-081, QA-165, QA-185, QA-200, QA-221 (see QA change log). Final tidy-up: self-referencing cross-reference removed from the standards row(s) REQ-008, REQ-035.	Equalities Lead
1.3 draft	30 September 2026	v3.9.1: standards cross-reference note updated to the 54-entry requirement inventory (AIG-AIMS-05 REQ-054, Civil Contingencies Act 2004, added).	Equalities Lead
1.4 draft	1 October 2026	v3.9.3: standards cross-reference note cites the 55-entry requirement inventory (AIG-AIMS-05 REQ-055, NIST AI 600-1 Generative AI Profile, added).	Equalities Lead
1.5 draft	2 October 2026	v3.9.5: standards cross-reference note cites the 56-entry requirement inventory (AIG-AIMS-05 REQ-056, SI 2026/425 ICO statutory code of practice on AI and automated decision-making, added). Proposed — for Council confirmation.	Equalities Lead
1.6 draft	12 October 2026	v3.9.10: standards cross-reference note cites the 58-entry requirement inventory (AIG-AIMS-05 REQ-057 DAMA-DMBOK and REQ-058 ISO/IEC 5259, added as voluntary data governance references). Proposed — for Council confirmation.	Equalities Lead

NOT APPROVED — PROPOSED INTEGRATION ANNEX

Integration annex — Equality assessment and evidence joins

DRAFT FOR COUNCIL REVIEW • 25 September 2026 • Not approved for operational use

Native equality assessment

This EIA remains the native analysis of protected-characteristic impacts, evidence, PSED due-regard reasoning, mitigation and the Equalities lead's confirmation. Keep socio-economic analysis separate as the template requires. No impact level, due-regard conclusion, or legal applicability is supplied by this integration annex.

Evidence and decision references

After registration, use the AIR-ID issued/maintained in AIG-INV-04; do not treat AIR-XXXX as an issued identifier. Cite evidence by proposed AIG-INV-04 Evidence Index Evidence ID plus source/version, observed or verification date, and controlled location, including limitations or gaps. An AIG-DEC-04 pointer must resolve only to a dated actual Gate Event or Condition (ID and date). The governance decision and any conditions belong in AIG-DEC-03 or authoritative forum minutes; AIG-DEC-04 can record a dated pointer but cannot substitute for or grant that decision.

Monitoring and reassessment

Keep the EIA in its native source. Link AIG-OPS-02 for the agreed post-deployment measure, threshold, cadence and responsible reviewer; record observations and reassessment there without presuming a result. Revisit on material changes to service use, affected groups, supplier, model/version, data, or decision process; update AIG-INV-04 current state and cite only the corresponding dated AIG-DEC-04 event/condition.

Rights and agentic links

Where affected people need to contest an AI-influenced decision, link the applicable AIG-OPS-04 route; the cross-reference does not show that an individual route has been delivered. If agent permissions can affect outcomes, link exact AIG-AGT-04 ASBOM version/AG-ID, AIG-AGT-05 as a derived view, and AIG-AGT-06 action records as relevant. Draft only: no equality result, approval, legal determination, or public release is asserted.

Fundamental-rights coverage: for how this EIA contributes to EU AI Act Article 27 fundamental-rights impact assessment coverage, see the Fundamental Rights Coverage Crosswalk (AIG-ASS-12). The crosswalk is a design mapping, not case evidence.

Standards and legal applicability — proposed QA cross-reference

PROPOSED QA INDEX — NOT APPROVED LEGAL ADVICE OR EVIDENCE OF COMPLIANCE. The listed instruments may be relevant to this artefact, but applicability depends on the case, service and Council delegation. Legislation, official guidance, Council policy and voluntary standards are different authority classes. The full 58-entry requirement inventory, authoritative URLs, validation owners and current versions are in AIG-AIMS-05; source checks are in AIG-AIMS-13. Do not treat a template, plan or cross-reference as completed assessment, adopted policy, ISO conformity or legal sign-off.

Requirement / instrument	Why check it here	Source
REQ-005 — Equality Act 2010, including Public Sector Equality Duty section 149	Public authority due regard under s.149; case-level equality screening is not risk-tier gated.	https://www.legislation.gov.uk/ukpga/2010/15/section/149
REQ-008 — Public Sector Bodies (Websites and Mobile Applications) (No. 2) Accessibility Regulations 2018	Screen the legislation requirement against this artefact's actual use and record evidence/version.	https://www.gov.uk/guidance/accessibility-requirements-for-public-sector-websites-and-apps
REQ-035 — EHRC Artificial Intelligence in Public Services and PSED guidance	Screen the regulatory guidance requirement against this artefact's actual use and record evidence/version.	https://www.equalityhumanrights.com/guidance/artificial-intelligence-public-services